

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Rigie	Team: Squad #03	CCRB Case #: 201601825	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Sunday, 11/15/2015 8:46 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/15/2017	Precinct: 48
Date/Time CV Reported Mon, 03/07/2016 11:13 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 03/07/2016 11:13 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Nicole Fabrizi	00000	934843	SSD INV
2. POM Starlin Dominguez	02943	935169	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Heriberto Sifonte	16472	942541	PBBX
2. POM Jose Rivera	02544	942439	PBBX
3. SGT David Pabon	128	939158	048 PCT
4. POF Dianna Lopez	22611	947185	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Starlin Dominguez	Off. Language: Police Officer Starlin Dominguez made remarks to § 87(2)(b) based upon race.	A . Substantiated
B . LT Nicole Fabrizi	Abuse: Lieutenant Nicole Fabrizi entered and searched location § 87(2)(b) in the Bronx.	B . Exonerated
C . POM Starlin Dominguez	Force: Police Officer Starlin Dominguez pointed his gun at § 87(2)(b)	C . Exonerated
D . LT Nicole Fabrizi	Abuse: Lieutenant Nicole Fabrizi did not process § 87(2)(b)'s complaint regarding officers.	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On March 7, 2016, § 87(2)(b) filed this complaint in person with the CCRB. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

On November 15, 2015, at approximately 8:46 a.m., § 87(2)(b) was inside her apartment at § 87(2)(b) in the Bronx. § 87(2)(b) had a dispute with the cleaning woman in her building, § 87(2)(b) who called 911 and reported § 87(2)(b) as an EDP. PO Heriberto Sifonte, PO Jose Rivera, Sgt. David Pabon, and PO Dianna Lopez of the 48th Precinct arrived on the scene, spoke to § 87(2)(b) and knocked on § 87(2)(b)'s door. After having a conversation with § 87(2)(b) and getting no response from § 87(2)(b) Sgt. Pabon determined that § 87(2)(b) was not an EDP and the officers left the scene. After the officers left, EMTs arrived on the scene and spoke to § 87(2)(b)'s neighbors. Based on these conversations, the EMTs determined that § 87(2)(b) was an EDP and requested that officers return to the scene. Sgt. Pabon and PO Lopez went back to the scene where Sgt. Pabon spoke to an EMT supervisor. Sgt. Pabon then called his supervisor, Lieutenant Nicole Fabrizi, who responded to the scene with her operator PO Starlin Dominguez. The building superintendent, § 87(2)(b) was present in the hallway at times during the incident. After arriving on the scene, PO Dominguez knocked on § 87(2)(b)'s door and called out the names, "Nina" and "Maria." A recording created by § 87(2)(b) captured PO Dominguez asking whether § 87(2)(b) was Hispanic and, after receiving an unheard response, knocking again and calling out, "Tanisha!" (**Allegation A**). § 87(2)(b) did not respond to the knocking and so, with Lieutenant Fabrizi's approval, PO Dominguez and Sgt. Pabon entered § 87(2)(b)'s apartment via a back window (**Allegation B**). On entering § 87(2)(b)'s apartment, PO Dominguez drew his gun and entered her living room with his gun pointed in § 87(2)(b)'s direction (**Allegation C**). PO Dominguez then holstered his gun and let the officers and EMTs into § 87(2)(b)'s apartment via the front door. § 87(2)(b) told Lieutenant Fabrizi that she wanted to file a complaint about the officers entering her apartment, but Lieutenant Fabrizi allegedly refused to let her do so (**Allegation D**). § 87(2)(b) declined to go to the hospital with the EMTs, but when they told her she had to go, she went willingly. The officers then left the scene without escorting § 87(2)(b) to the hospital.

§ 87(2)(b) provided nine videos to the investigation. Eight of these videos feature § 87(2)(b) making various statements about the incident. Officers can be heard in the background of one of the eight videos, but what they are saying cannot be clearly heard. Six of the eight videos were filmed after the incident. § 87(2)(g)

§ 87(2)(b) The ninth video, which is cited below as evidence pertaining to **Allegation A**, features clear audio of the officer's voices, but was filmed behind a door and so no visual can be seen. Please see video attached below:



201601825_20160308_1523_DM.mp4

This case was closed past 90 days because of delays in receiving documentation from the 48th Precinct, § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was deemed unsuitable for mediation § 87(2)(b)
- On August 8, 2016, a FOIL request to the Office of the Comptroller confirmed that § 87(2)(b) filed no Notices of Claim for this incident (01 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) was involved in one previous CCRB case § 87(2)(b)
- PO Starlin Dominguez has been a member of the NYPD for 12 years and has three previous CCRB cases involving four allegations and no substantiated allegations. § 87(4-b) § 87(2)(g)
- Lieutenant Fabrizi has been a member of the NYPD for 12 years and has six previous CCRB cases involving 17 allegations with no substantiated allegations. § 87(4-b) § 87(2)(g)

Potential Issues

- § 87(2)(b) provided a video of the officers knocking on her door. However, because the camera is panned towards a closed door, only audio can be heard.
- § 87(2)(g)
- § 87(2)(b) refused to sign a HIPAA release form to allow her medical records to be obtained by the investigation.

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Dominguez was played § 87(2)(b)'s video of the incident and said that the male voice at the beginning of the recording calling out "Nina" could have been him, but he was not sure (04 Board Review). Sgt. Pabon and PO Lopez were played § 87(2)(b)'s video from the incident. Sgt. Pabon identified Lieutenant Fabrizi's voice, but was not sure of his or PO Dominguez's. PO Lopez positively identified PO Dominguez as the male voice yelling, "Nina!" and "Maria!" between knocking at 00:18. This is the same voice that yells, "Tanisha!" § 87(2)(g) (05 and 06 Board Review).
- While PO Dominguez and Sgt. Pabon were the first officers to enter § 87(2)(b)'s apartment, Lieutenant Fabrizi was the highest ranking officer on scene and Sgt. Pabon testified that she approved the entry. § 87(2)(g)
- Although § 87(2)(b) alleged that she attempted to file a complaint with the officers collectively, Lieutenant Fabrizi was the highest ranking officer present § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g), § 87(2)(b)
- § 87(2)(b) alleged that she was forced to go to the hospital against her will. However, the investigation determined that the officers never determined that § 87(2)(b) was an EDP and the decision to subsequently transport her to the hospital was made by an FDNY supervisor. § 87(2)(b) also said that it was EMTs who told her that she had to go to the hospital and it is undisputed that she went willingly with no officers escorting her or participating in her transport there in any way. § 87(2)(g)

Allegation A –Offensive Language: Police Officer Starlin Dominguez made remarks to § 87(2)(b) based upon race.

During her interview, § 87(2)(b) said that PO Dominguez, Lieutenant Fabrizi, Sgt. Pabon, and PO Lopez arrived on the scene, banged on her door, and asked her to open it. At first, PO Dominguez referred to § 87(2)(b) as "Maria" believing that she was § 87(2)(b) PO

Dominguez then began referring to her as "Tanisha" and asked her to open the door in-between laughing. § 87(2)(b) believed that PO Dominguez referred to her as "Tanisha" because he learned that she was black and was referencing her race by picking a stereotypically black sounding name. § 87(2)(b) did not respond to the officers and left her door locked (09 Board Review). § 87(2)(b) did not mention this allegation in her emailed complaint (19 Board Review).

In a phone statement in Spanish, § 87(2)(b) said that he spoke some English and did not hear the officers make any comments about § 87(2)(b)'s race while knocking on her door. § 87(2)(b) did not mention officers knocking on § 87(2)(b)'s door the second time they arrived (10 and 11 Board Review).

Upon reviewing the second video that § 87(2)(b) provided of the incident, the video begins with audio, but the video is too dark to see anything. There is a loud knocking sound and PO Dominguez yells out, "Maria!" There is more knocking and then PO Dominguez yells, "Nina!" Sgt. Pabon is heard speaking to Lieutenant Fabrizi, but not all of their conversation can be clearly heard. At 02:49 PO Dominguez said, "Maria!" At 02:56 PO Dominguez asks, "Is she Hispanic?" One of the female officers responds, but this response cannot be clearly heard. PO Dominguez then yells, "Tanisha!" and then laughter can be heard along with further knocking. One of the female officers says, "Now she's like, 'Whose Tanisha, Maria?'" PO Dominguez adds, "She's old. Maybe it's something crazy like Eunice" (07 and 08 Board Review).

PO Dominguez said that he knocked on § 87(2)(b)'s door a few times, but did not call out any name, because he did not know her name. PO Dominguez did not think that any officers knew § 87(2)(b)'s name prior to entering her apartment. PO Dominguez never referred to § 87(2)(b) as "Tanisha" or used any names based on § 87(2)(b)'s presumed race. PO Dominguez never heard § 87(2)(b) complain that he made the aforementioned statements (04 Board Review).

Sgt. Pabon and PO Lopez generally corroborated PO Dominguez's statement that PO Dominguez did not refer to § 87(2)(b) as "Tanisha" or make any comments referencing her race. Sgt. Pabon added that the officers probably knew § 87(2)(b)'s race prior to entering her apartment, but he was not sure (05 and 06 Board Review).

Lieutenant Fabrizi did not remember whether PO Dominguez referred to § 87(2)(b) by name or whether the officers knew her name while knocking on the door. Lieutenant Fabrizi added that § 87(2)(b) might have told the officers § 87(2)(b)'s name (12 Board Review).

P.G. 203-09 says that officers must be courteous and respectful (13 Board Review).

§ 87(2)(b) said that PO Dominguez initially referred to her as "Maria" when knocking, because he believed that she was § 87(2)(b). § 87(2)(b) said that PO Dominguez then began referring to her as "Tanisha," because he learned she was black and picked a stereotypically black sounding name. § 87(2)(b) heard these comments while standing behind her door and recording a video. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be *substantiated*.

Allegation B –Abuse of Authority: Lieutenant Nicole Fabrizi entered and searched location § 87(2)(b) in the Bronx.

§ 87(2)(b) said that approximately two hours after the officers first knocked on her door, she was lying on her side on her living room couch listening to music on headphones and holding a pair of forks that she was using to do Reiki work to channel negative energy. Despite the headphones, § 87(2)(b) was able to hear someone enter her apartment via the fire escape in her bedroom. § 87(2)(b) lifted her head up, looked behind the couch, and observed PO Dominguez and Sgt. Pabon. § 87(2)(b) asked PO Dominguez what the officers were doing inside her apartment while PO Sgt. Pabon walked to her front door and opened it. PO Dominguez explained that the officers received a 911 call because § 87(2)(b) threw water on the floor. Lieutenant Fabrizi, PO Lopez, and two EMTs entered § 87(2)(b)'s apartment while § 87(2)(b) and § 87(2)(b) remained outside the door (09 Board Review). § 87(2)(b)'s emailed complaint was generally consistent with her CCRB interview (19 Board Review).

Upon reviewing § 87(2)(b)'s video of the incident just before 00:30, Sgt. Pabon says, "82 hours....going for nonsense. For nonsense. If someone was to tell me that she hurt me. She did this to me." Lieutenant Fabrizi asks who the complainant was. Sgt. Pabon replied that the complainant was the super's wife and says, "And I swear to god, she said, 'She threw water and now I got to clean _____' It's a fucking EDP." The doorbell then rings multiple times in § 87(2)(b) succession. Lieutenant Fabrizi says, "She might not even be there." PO Dominguez replies, "That's what the lady said." At 01:15 Lieutenant Fabrizi speaks Spanish briefly. Sgt. Pabon then says, "It's 39 degrees." At 01:40 Sgt. Pabon says, "Let me see if this lady's apartment has a window. Where's the super?" Lieutenant Fabrizi replies, "I'll call him. PO Lopez, said to be careful because the female believed that the CIA was targeting her apartment." PO Dominguez asks, "She wrote that?" PO Lopez replied, "Yes, she wrote all this and they said they had to erase it..." At 03:51 Sgt. Pabon says, "But that's what I mean. She's not afraid of this woman. She's just mad that she had to clean the floor." Lieutenant Fabrizi replies, "But she called us for her. She called us for her." One of the male officers asks, "The super's wife?" Lieutenant Fabrizi replied, "Yea, the lady that cleans. She called us for her. I've been ringing her door bell...." Sgt. Pabon says, "Ask him if he has keys to this apartment." Lieutenant Fabrizi replies, "They just left." One of the female officers says, "She's there." One of the female officers is heard saying something in Spanish and the recording ends (07 and 08 Board Review).

Upon reviewing § 87(2)(b) 911 call for the incident, § 87(2)(b) told the 911 operator that § 87(2)(b) threw hot water on her and had an unknown mental condition (14 Board Review).

In a phone statement, § 87(2)(b) said that § 87(2)(b) threw a mixture of hot oil and water in her direction and that some of it got on her. § 87(2)(b) said that she told the officers that she believed § 87(2)(b) had a mental condition due to her previous actions, including throwing water on her. Because § 87(2)(b) did not answer her door for the officers, PO Dominguez and Sgt. Pabon went into her apartment via a back window. § 87(2)(b)'s statement generally corroborated § 87(2)(b)'s statement (10 and 11 Board Review).

Upon reviewing detailed EVENT § 87(2)(b) at 08:58 a.m., ESU was requested to the scene and EMS arrived on the scene at 9:00 a.m. Also at 9:00 a.m., ESU was cancelled under the authority of a sergeant who reported that there was no EDP. At 9:17 a.m. EMS requested an RMP back to the location. At 11:19 a.m. a sergeant was en-route to the scene and at 12:30 p.m. EMS removed an individual to the hospital (15 Board Review).

PO Dominguez said that he climbed onto the fire escape and then climbed through § 87(2)(b)'s bedroom window with Sgt. Pabon. PO Dominguez then entered § 87(2)(b)'s living room where she was lying on a bed. PO Dominguez said, "Hello Hello!" to § 87(2)(b) who responded by lifting up her head. PO Dominguez walked toward the door to let the other officers and EMS into the apartment while Sgt. Pabon spoke to § 87(2)(b) but PO Dominguez did not recall what Sgt. Pabon was saying (04 Board Review).

Sgt. Pabon generally corroborated PO Dominguez's account of the entry and added that the entry was approved by Lieutenant Fabrizi after the EMS supervisor insisted on access to § 87(2)(b)'s apartment to check on her wellbeing and refused to leave the scene until he did so. Sgt. Pabon added that he disagreed with the assessment of the EMS supervisor and did not believe that § 87(2)(b) was a danger to herself or others, which is why he left the scene the first time. Sgt. Pabon called Lieutenant Fabrizi to the scene, because he refused to enter on his own initiative because of his disagreement with the EMS supervisor. However, he and PO Dominguez entered § 87(2)(b)'s apartment with the approval of Lieutenant Fabrizi after she spoke to the EMS supervisor. He and PO Dominguez therefore entered § 87(2)(b)'s apartment via her window in an attempt to make a non-forceful entry (05 Board Review).

Lieutenant Fabrizi and PO Lopez generally corroborated PO Dominguez and Sgt. Pabon's testimony pertaining to the entry. Lieutenant Fabrizi added that EMS, § 87(2)(b) and § 87(2)(b) all told her that § 87(2)(b) had a history of mental problems, was violent, and that some of the residents were worried about the wellbeing of their children (06 and 12 Board Review).

People v. Musto reaffirmed that officers may enter a premises without a warrant when they have reasonable grounds to believe there is an emergency at hand and an immediate need for their assistance for the protection of life and property and that the search is not motivated by the need to make an arrest or seize evidence. This case added that the emergency exception to the warrant requirement still exists in cases where officers earlier determined there to be no emergency, but

later receive additional information confirming that there is an emergency (People v. Musto, 106 A.D. 3d 1380 (2013)) (16 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be *exonerated*.

Allegation C – Force: Police Officer Starlin Dominguez pointed his gun at § 87(2)(b)

§ 87(2)(b) said that when PO Dominguez and Sgt. Pabon entered her apartment, PO Dominguez had his gun drawn and pointed at § 87(2)(b)'s back. PO Dominguez told § 87(2)(b) to turn around, put her phone down, and throw her forks onto the floor. § 87(2)(b) complied with these instructions and PO Dominguez holstered his gun (09 Board Review). § 87(2)(b)'s emailed complaint was generally consistent with her CCRB interview (19 Board Review).

In a phone statement § 87(2)(b) said that she told the officers that she believed § 87(2)(b) had a mental condition due to her previous actions, including throwing water on her. § 87(2)(b) generally corroborated § 87(2)(b)'s testimony (10 and 11 Board Review).

Upon reviewing detailed EVENT § 87(2)(b) at 8:46 a.m., officers received a report that an individual with a mental history threw hot water. At the time of the report, it was not certain whether the individual had weapons or whether anyone was injured at the scene. The individual with the mental history was described as violent. At 8:49 a.m., it was clarified that the female was not violent, but the caller was requesting an ambulance for an EDP and so an EMS unit was dispatched at 8:50 a.m. (15 Board Review).

PO Dominguez said that upon entering § 87(2)(b)'s bedroom, he drew his gun and walked into § 87(2)(b)'s living room with Sgt. Pabon behind him. PO Dominguez drew his gun because he was not sure what was in the apartment or whether § 87(2)(b) would act out violently. Aside from the information given to him by § 87(2)(b) and the fact that § 87(2)(b) was reported as an EDP, there were no other factors that led PO Dominguez to believe that § 87(2)(b) might be violent. On walking into the living room, PO Dominguez observed § 87(2)(b) sleeping on a bed under sheets. PO Dominguez may have pointed his gun in § 87(2)(b)'s direction on entering the room, but quickly holstered it when he observed § 87(2)(b). PO Dominguez could not see

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date